

HIGH COURT AND SUBORDINATE COURTS

CONSTITUTIONAL LOCATION, COURT MAP → HIGH COURT JUDGES: APPOINTMENT → TRANSFER, TEMPORARY JUDGES AND → JURISDICTION GATEWAY AND ARTICLE → FIVE WRITS AND THE → TRIBUNALS, BASIC STRUCTURE AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW
SUBORDINATE EXTRA
APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00
CONSTITUTIONAL LOCATION, COURT MAP AND DATED CAPACITY

CONSTITUTIONAL LOCATION, COURT MAP AND DATED CAPACITY
ARTICLES 214-237
STATE-LEVEL CONSTITUTIONAL JUSTICE
SUPREME COURT
HIGH COURT
DISTRICT AND SUBORDINATE COURTS.
HIGH COURT FOR EACH STATE
COMMON HIGH COURT BY PARLIAMENTARY LAW.

ARTICLES 214-237: STATE-LEVEL CONSTITUTIONAL JUSTICE

Supreme Court → High Court → district and subordinate courts.

214: High Court for each State

231: common High Court by parliamentary law.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLES 214-237: STATE-LEVEL CONSTITUTIONAL JUSTICE
- Supreme Court → High Court → district and subordinate courts.
- 214: High Court for each State
- 231: common High Court by parliamentary law.

POWER / PROCEDURE

- 25 HIGH COURTS as at 28 August 2026; one-per-State/UT is false.
- 1862: Calcutta, Bombay and Madras
- 1866: Allahabad.
- Inherited jurisdiction continues through Article 225 subject to Constitution and law.

CHECK / LIMIT

- DATED CAPACITY: DEPARTMENT OF JUSTICE, 1 JULY 2026
- 1,122 sanctioned
- 781 working
- 341 vacant

FEDERAL / RIGHTS IMPACT

- vacancy share about 30.4%.
- Never quote working strength or vacancy without its date.
- CORE ROLE constitutional remedies + appeals + supervision + judicial administration.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CORE ROLE constitutional remedies + appeals + supervision + judicial administration.

01

STAGE 01
HIGH COURT JUDGES: APPOINTMENT, QUALIFICATION AND INDEPENDENCE

HIGH COURT JUDGES
APPOINTMENT, QUALIFICATION AND INDEPENDENCE
ARTICLE 216
CHIEF JUSTICE + OTHER JUDGES AS PRESIDENT CONSIDERS NECESSARY.
ARTICLE 217 APPOINTMENT
CJI + GOVERNOR CONSULTATION
HC CHIEF JUSTICE FOR A PUISNE JUDGE.
ORIGINATING HC

ARTICLE 216

Chief Justice + other judges as President considers necessary.

ARTICLE 217 APPOINTMENT

President → CJI + Governor consultation → HC Chief Justice for a puisne judge.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 216
- Chief Justice + other judges as President considers necessary.
- ARTICLE 217 APPOINTMENT
- President → CJI + Governor consultation → HC Chief Justice for a puisne judge.
- ORIGINATING HC: Chief Justice + two senior-most colleagues.

POWER / PROCEDURE

- SC COLLEGIUM FOR HC APPOINTMENT: CJI + two senior-most SC judges.
- Indian citizen + ten judicial-office years OR ten High Court advocacy years.
- No distinguished-jurist route; no constitutional minimum age.
- Article 219 oath before Governor/appointee
- retirement 62

CHECK / LIMIT

- resignation to President.
- Article 218 applies the Article 124 removal route
- Article 221 protects conditions.
- Article 229 administrative expenses are charged on the State Consolidated Fund.
- CASE ARC

FEDERAL / RIGHTS IMPACT

- First Judges Case (1981) → executive primacy
- Second Judges Case (1993) → judicial primacy
- Third Judges Case (1998) → plural collegium
- Fourth Judges Case (2015) → collegium remains operative.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: First Judges Case (1981) → executive primacy | Second Judges Case (1993) → judicial primacy.

02

STAGE 02
TRANSFER, TEMPORARY JUDGES AND HIGH COURT ADMINISTRATION

TRANSFER, TEMPORARY JUDGES AND HIGH COURT ADMINISTRATION
ARTICLE 222 TRANSFER
PRESIDENT ACTS AFTER CJI CONSULTATION; CONSENT IS NOT CONSTITUTIONALLY
CURRENT PROCEDURE
CJI CONSULTS FOUR SENIOR-MOST SC JUDGES + BOTH AFFECTED
SANKALCHAND HIMMATLAL SHETH (1977)
FULL, EFFECTIVE CONSULTATION; PUBLIC INTEREST, NOT PUNISHMENT.
TEMPORARY CAPACITY

ARTICLE 222 TRANSFER

President acts after CJI consultation; consent is not constitutionally required.

CURRENT PROCEDURE: CJI consults four senior-most SC judges + both affected HC Chief Justices.

Sankalchand Himmatlal Sheth (1977): full, effective consultation; public interest, not punishment.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 222 TRANSFER
- President acts after CJI consultation; consent is not constitutionally required.
- CURRENT PROCEDURE: CJI consults four senior-most SC judges + both affected HC Chief Justices.

POWER / PROCEDURE

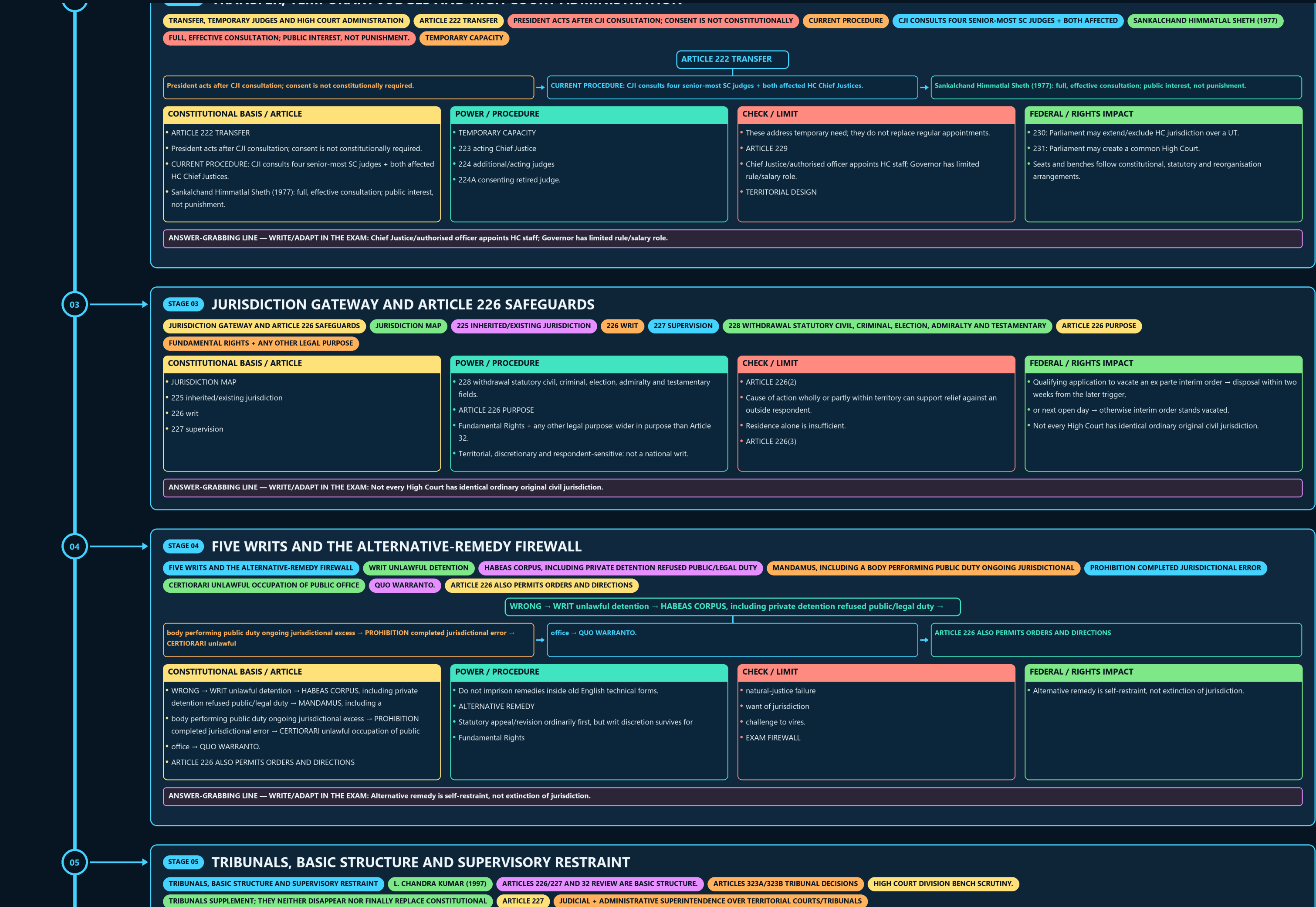
- TEMPORARY CAPACITY
- 223 acting Chief Justice
- 224 additional/acting judges

CHECK / LIMIT

- These address temporary need; they do not replace regular appointments.
- ARTICLE 229
- Chief Justice/authorised officer appoints HC staff; Governor has limited

FEDERAL / RIGHTS IMPACT

- 230: Parliament may extend/exclude HC jurisdiction over a UT.
- 231: Parliament may create a common High Court.
- Seats and benches follow constitutional, statutory and reorganisation



• office → QUO WARRANTO.

• ARTICLE 226 ALSO PERMITS ORDERS AND DIRECTIONS

• Fundamental Rights

• EXAM FIREWALL

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Alternative remedy is self-restraint, not extinction of jurisdiction.

05

STAGE 05

TRIBUNALS, BASIC STRUCTURE AND SUPERVISORY RESTRAINT

TRIBUNALS, BASIC STRUCTURE AND SUPERVISORY RESTRAINT

L. CHANDRA KUMAR (1997)

ARTICLES 226/227 AND 32 REVIEW ARE BASIC STRUCTURE.

ARTICLES 323A/323B TRIBUNAL DECISIONS

HIGH COURT DIVISION BENCH SCRUTINY.

TRIBUNALS SUPPLEMENT; THEY NEITHER DISAPPEAR NOR FINALLY REPLACE CONSTITUTIONAL

ARTICLE 227

JUDICIAL + ADMINISTRATIVE SUPERINTENDENCE OVER TERRITORIAL COURTS/TRIBUNALS

L. CHANDRA KUMAR (1997)

Articles 226/227 and 32 review are Basic Structure.

Articles 323A/323B tribunal decisions → High Court Division Bench scrutiny.

Tribunals supplement; they neither disappear nor finally replace constitutional courts.

CONSTITUTIONAL BASIS / ARTICLE

- L. CHANDRA KUMAR (1997)
- Articles 226/227 and 32 review are Basic Structure.
- Articles 323A/323B tribunal decisions → High Court Division Bench scrutiny.
- Tribunals supplement; they neither disappear nor finally replace constitutional courts.

POWER / PROCEDURE

- ARTICLE 227
- Judicial + administrative superintendence over territorial courts/tribunals
- Armed-Forces-law forums excluded; petition or suo motu possible.
- RADHEY SHYAM (2015): civil-court judicial orders belong under 227, not 226.

CHECK / LIMIT

- K. VALARMATHI (2025): supervision cannot supplant trial and statutory appeal.
- ARTICLE 228
- Substantial constitutional-interpretation question → HC withdraws
- decides question or case → may return case with binding answer.

FEDERAL / RIGHTS IMPACT

- TRAP: supervision and withdrawal are not routine appeals.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP: supervision and withdrawal are not routine appeals.

06

STAGE 06

ARTICLES 233-237 AND CURRENT RECRUITMENT LAW

ARTICLES 233-237 AND CURRENT RECRUITMENT LAW

ARTICLE 233 DISTRICT JUDGES

GOVERNOR APPOINTS/POSTS/PROMOTES IN CONSULTATION WITH HIGH COURT.

ARTICLE 233(2) TEXT

OUTSIDE-SERVICE CANDIDATE

SEVEN ADVOCACY YEARS + HC RECOMMENDATION.

REJANISH K.V. V. K. DEEPA (2025 INSC 1208)

PROSPECTIVELY OVERRULES DHEERAJ MOR.

ARTICLE 233 DISTRICT JUDGES

Governor appoints/posts/promotes in consultation with High Court.

Article 233(2) text: outside-service candidate → seven advocacy years + HC recommendation.

REJANISH K.V. v. K. DEEPA (2025 INSC 1208)

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 233 DISTRICT JUDGES
- Governor appoints/posts/promotes in consultation with High Court.
- Article 233(2) text: outside-service candidate → seven advocacy years + HC recommendation.
- REJANISH K.V. v. K. DEEPA (2025 INSC 1208)

POWER / PROCEDURE

- Prospectively overrules Dheeraj Mor.
- Qualifying serving judicial officers may compete in direct recruitment using combined advocacy/judicial-service experience
- minimum age 35
- eligibility at application date.

CHECK / LIMIT

- ARTICLE 234 BELOW DISTRICT JUDGE
- Governor's rules + State PSC consultation + High Court consultation.
- ALL INDIA JUDGES ASSOCIATION (20 MAY 2025) future Civil Judge entry → three years Bar practice
- 25% LDCE District-Judge promotion route + suitability control.

FEDERAL / RIGHTS IMPACT

- 236 defines district judge/judicial service
- 237 can apply chapter to notified magistrates.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 236 defines district judge/judicial service | 237 can apply chapter to notified magistrates.

07

STAGE 07

ARTICLE 235 CONTROL AND THE DISTRICT JUSTICE CHAIN

ARTICLE 235 CONTROL AND THE DISTRICT JUSTICE CHAIN

ARTICLE 235 CONTROL IN HIGH COURT POSTING + PROMOTION

NRIPENDRA NATH BAGCHI (1966)

CONTROL INCLUDES DISCIPLINARY AUTHORITY.

CHANDRA MOHAN (1966)

EXECUTIVE DOMINANCE IN DISTRICT-JUDGE SELECTION IS UNCONSTITUTIONAL.

INDEPENDENCE CHAIN

GOVERNOR/STATE RECRUITMENT ROLE + MANDATORY HC CONSULTATION

ARTICLE 235 CONTROL IN HIGH COURT posting + promotion + leave + disciplinary control, subject

NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.

CHANDRA MOHAN (1966): executive dominance in district-judge selection is unconstitutional.

INDEPENDENCE CHAIN

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 235 CONTROL IN HIGH COURT posting + promotion + leave + disciplinary control, subject to law and appeal rights.
- NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.
- CHANDRA MOHAN (1966): executive dominance in district-judge selection is unconstitutional.

POWER / PROCEDURE

- Governor/State recruitment role + mandatory HC consultation
- High Court career control
- trial judges insulated from the litigating executive.
- DISTRICT STRUCTURE, SUBJECT TO STATE LAW

CHECK / LIMIT

- District Judge / Sessions Judge
- Civil Judge Senior Division / Chief Judicial Magistrate
- Civil Judge Junior Division / Judicial Magistrate.
- Article 236 defines district judge broadly; names and pecuniary powers vary.

FEDERAL / RIGHTS IMPACT

- CRIMINAL CONTROL
- Sessions death sentence → High Court confirmation before execution.
- Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

HIGH COURT AND SUBORDINATE COURTS • TILE 3/5 • same master rows 5238-8472 of 13710 • continues below

ARTICLE 235 CONTROL AND THE DISTRICT JUSTICE CHAIN

ARTICLE 235 CONTROL IN HIGH COURT POSTING + PROMOTION

NRIPENDRA NATH BAGCHI (1966)

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INDEPENDENCE CHAIN

GOVERNOR/STATE RECRUITMENT ROLE + MANDATORY HC CONSULTATION

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INDEPENDENCE CHAIN

CONSTITUTIONAL BASIS / ARTICLE

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- NRIPENDRA NATH BAGCHI (1966): control includes disciplinary authority.
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- INDEPENDENCE CHAIN

POWER / PROCEDURE

- Governor/State recruitment role + mandatory HC consultation
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- trial judges insulated from the litigating executive.
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CHECK / LIMIT

- District Judge / Sessions Judge
- Civil Judge Senior Division / Chief Judicial Magistrate
- Civil Judge Junior Division / Judicial Magistrate.
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FEDERAL / RIGHTS IMPACT

- CRIMINAL CONTROL
- Sessions death sentence → High Court confirmation before execution.
- Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 227 corrects jurisdiction; Article 235 administers careers: do not conflate them.

08

STAGE 08

LEGAL AID AND SPECIALISED ACCESS INSTITUTIONS

LEGAL AID AND SPECIALISED ACCESS INSTITUTIONS

ARTICLE 39A + LEGAL SERVICES AUTHORITIES ACT, 1987

HIGH COURT LEGAL SERVICES COMMITTEE

TALUK COMMITTEE.

ELIGIBILITY USES STATUTORY CATEGORIES AND PRESCRIBED INCOME CEILINGS; ONE

ORDINARY LOK ADALAT SETTLEMENT BY CONSENT

CIVIL + COMPOUNDABLE CRIMINAL MATTERS

NO MERITS DECISION AFTER FAILURE.

ORDINARY LOK ADALAT settlement by consent

PERMANENT LOK ADALAT pre-litigation public-utility field

civil + compoundable criminal matters

conciliation first

no merits decision after failure.

limited merits decision after failure.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 39A + LEGAL SERVICES AUTHORITIES ACT, 1987
- NALSA → SLSA / High Court Legal Services Committee → DLSA → Taluk committee.
- Eligibility uses statutory categories and prescribed income ceilings; one old figure is unsafe.

POWER / PROCEDURE

- ORDINARY LOK ADALAT settlement by consent
- civil + compoundable criminal matters
- no merits decision after failure.

CHECK / LIMIT

- PERMANENT LOK ADALAT pre-litigation public-utility field
- conciliation first
- limited merits decision after failure.

FEDERAL / RIGHTS IMPACT

- ARBITRATION agreement-based private adjudication of arbitrable civil/commercial disputes.
- FAMILY COURTS / GRAM NYAYALAYAS statutory specialised access; implementation and jurisdiction are not nationally uniform.
- PYQ 2024: compare source, consent, field, criminal reach and legal effect.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PYQ 2024: compare source, consent, field, criminal reach and legal effect.

09

STAGE 09

ALL INDIA JUDICIAL SERVICE: ROUTE, DESIGN AND LIMITS

ALL INDIA JUDICIAL SERVICE

ROUTE, DESIGN AND LIMITS

ARTICLE 312 ROUTE

RAJYA SABHA

TWO-THIRDS OF MEMBERS PRESENT AND VOTING

PARLIAMENT MAY CREATE SERVICE BY LAW.

ARTICLE 312(3)

AJJS CANNOT INCLUDE POSTS BELOW DISTRICT JUDGE.

ARTICLE 312 ROUTE

Rajya Sabha: two-thirds of members present and voting

Parliament may create service by law.

ARTICLE 312(3): AJJS cannot include posts below district judge.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 312 ROUTE
- Rajya Sabha: two-thirds of members present and voting
- Parliament may create service by law.
- ARTICLE 312(3): AJJS cannot include posts below district judge.
- CURRENT STATUS, 28 AUGUST 2026: no AJJS exists.

POWER / PROCEDURE

- CASE FOR national standards
- wider pool
- predictable recruitment
- mobility and diversity.
- CASE AGAINST language and local law

CHECK / LIMIT

- State reservation/cadre design
- federal role
- career integration.
- NON-NEGOTIABLE DESIGN
- High Court role in selection/probation + Article 235 control + local-language testing

FEDERAL / RIGHTS IMPACT

- State-law training + federal consultation + transparent allocation.
- Do not confuse AJJS with the 2025 Civil Judge Bar-practice rule.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Do not confuse AJJS with the 2025 Civil Judge Bar-practice rule.

10

STAGE 10

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

CAPACITY DIAGNOSIS VACANCIES + STAFF/INFRASTRUCTURE + PROCESS/SERVICE DELAY +

COST/UNDERTRIAL HARDSHIP

WEAKER RIGHTS AND COMMERCIAL CERTAINTY.

DATED HIGH COURT SNAPSHOT, 1 JULY 2026

1,122 SANCTIONED

781 WORKING

341 VACANT.

CAPACITY DIAGNOSIS vacancies + staff/infrastructure + process/service delay + government litigation

10

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Do not confuse AIJS with the 2025 Civil Judge Bar-practice rule.

STAGE 10

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

CAPACITY, ECOURTS AND DATA-GOVERNANCE REFORM

CAPACITY DIAGNOSIS VACANCIES + STAFF/INFRASTRUCTURE + PROCESS/SERVICE DELAY + 341 VACANT.

COST/UNDERTRIAL HARDSHIP

WEAKER RIGHTS AND COMMERCIAL CERTAINTY.

DATED HIGH COURT SNAPSHOT, 1 JULY 2026

1,122 SANCTIONED

781 WORKING

CAPACITY DIAGNOSIS vacancies + staff/infrastructure + process/service delay + government litigation

backlog → cost/undertrial hardship → weaker rights and commercial certainty.

DATED HIGH COURT SNAPSHOT, 1 JULY 2026

1,122 sanctioned

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: EXECUTABLE REFORM appointment calendars | registry/staff capacity | accountable government appeals reliable service | age-based dockets | legal aid | cyber/privacy/local-language safeguards.

11

STAGE 11

COMPARISON, PYQ CONTROLS AND MARKS-SCALED ANSWER SPINE

COMPARISON, PYQ CONTROLS AND MARKS-SCALED ANSWER SPINE

SUPREME COURT

HIGH COURT

SUBORDINATE COURTS

ARTICLE 32 FR REMEDY

ARTICLE 226 FR + LEGAL RIGHTS

STATUTORY TRIAL JURISDICTION NATIONAL APEX

TERRITORIAL CONSTITUTIONAL COURT

SUPREME COURT

HIGH COURT

SUBORDINATE COURTS

Article 32 FR remedy

Article 226 FR + legal rights

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

MECHANISM / VERDICT — 15 MARKS architecture → mechanism → case/current evidence → criticism → targeted reform.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 10 MARKS thesis → 3 article distinctions → one case → limit → verdict.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

37. ARTICLE 226 VERSUS ARTICLE 227 IN ANSWER WRITING

38. HIGH COURT VERSUS SUPREME COURT

39. APPOINTMENT REFORM MATRIX

40. ANSWER-WRITING EVIDENCE DISCIPLINE

HIGH COURT CONTROL PROTECTS DISTRICT JUDICIAL INDEPENDENCE.

NAMED EVIDENCE

ARTICLES 233-235.

OPTIONAL DOCTRINE / CASE

ADVANCED LIMIT

COMPARATIVE NUANCE

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels

HIGH COURT AND SUBORDINATE COURTS • TILE 5/5 • same master rows 10476-13710 of 13710 • end